

25STCV23202 25STCV23202

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Case Number: 25STCV23202 Hearing Date: August 21, 2026 Dept: 408

Defendants Uber Technologies, Inc., Uber USA, LLC, Rasier, LLC, and Rasier-CA, LLC's Motion to Compel Arbitration and Stay Proceedings is GRANTED.

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I.

BACKGROUND

On August

7, 2025, Plaintiff Anastasiia

Sergeev Butovskikh ("Plaintiff") filed a complaint against Defendants Jingxing Zhang ("Zhang"), John Shirvanian ("Shirvanian"), Uber Technologies, Inc. ("Uber Inc."), Uber USA, LLC ("Uber LLC"), Rasier, LLC ("Rasier"), and Rasier-CA, LLC ("Rasier-CA", collectively "Defendants") alleging causes of action for:

1.

Motor Vehicle

Negligence; and

2.

General

Negligence.

On September 4, 2025, the court found cases

25STCV18434 and 25STCV23202 related, assigning 25STCV18434 as the lead case.

On October 16, 2025, Shirvanian filed an answer to

Plaintiff's complaint.

On October 20, 2025, Uber Inc., Uber LLC, Rasier, and Rasier-CA ("Uber Defendants") filed an answer to Plaintiff's complaint.

On November 17, 2025, Zhang filed an answer to Plaintiff's complaint.

On May 21, 2026, Uber Defendants filed this Motion to Compel Arbitration and Stay Proceedings. On July 15, 2026, Plaintiff filed an opposition. On August 11, 2026, Uber Defendants filed a reply.

II.

LEGAL STANDARD

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement." (Code Civ. Proc., § 1281.2, subd. (a)-(b).)

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (*Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 761.) The burden then shifts to the opposing party to prove by a preponderance of the evidence a defense to enforcement (e.g., fraud, unconscionability, etc.). (*Ibid.*) "In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

"If a court of competent jurisdiction. . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order

to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.)

III.

DISCUSSION

Uber Defendants seek to compel arbitration of Plaintiff’s claims and stay all further judicial proceedings in this action pending completion of arbitration.

A. Existence of an Arbitration Agreement

Uber Defendants contend Plaintiff entered into an arbitration agreement by consenting to Uber Inc.’s Terms of Use on September 17, 2022, and January 21, 2023. (Motion, at p. 6.) In support, Uber Defendants provide the declaration of Brandon Kosinski (“Kosinski”), a senior paralegal for Uber Inc., providing that all Uber app users must register for an account and agree to Uber’s Terms of Use to use the platform. (Kosinski Decl., ¶ 6.) Kosinski located records associated with Plaintiff’s phone number and unique identifying number determining that Plaintiff registered for an Uber account on September 17, 2022, and the terms of service applicable at the time of sign up were effective as of August 16, 2022. (Id., ¶ 9, Exh. A.) On January 21, 2023, Plaintiff was presented with an in-app pop-up screen stating that Uber updated its Terms of Use. (Id., ¶¶ 10-14; Exhs. A-C.) The message included a hyperlink to the Terms of Use published on Uber’s website, as well as a check box next to the words “By checking this box, I have reviewed and agreed to the Terms of Use and acknowledged the Privacy Notice.” (Ibid.) Uber’s records show that Plaintiff clicked the check box and tapped the “Confirm” button agreeing to Uber’s updated Terms of Use on January 21, 2023. (Id., ¶14, Exh. A.) Uber Defendants provide evidence of the arbitration provisions and Plaintiff’s acceptance of the January 21, 2023, updated Terms of Use. (Id., ¶¶ 14-15, Exhs. A, C, D.) The arbitration agreement provides as follows:

“By agreeing to these Terms, you agree that you are required to resolve any claim that you may have against Uber on an individual basis in arbitration as set forth in this Arbitration Agreement, and not as a class, collective, coordinated, consolidated, mass and/or representative action. You and Uber are each waiving your right to a trial by jury. [...]

(a) Agreement to Binding Arbitration
Between You and Uber.

(1) Covered Disputes: Except as expressly provided below in Section 2(b), you and Uber agree that any dispute, claim, or controversy in any way arising out of or relating to (i) these Terms and prior versions of these Terms, or the existence, breach, termination, enforcement, interpretation, scope, waiver, or validity thereof; (ii) your access to or use of the Services at any time; (iii) incidents or accidents resulting in personal injury to you or anyone else that you allege occurred in connection with your use of the Services (including, but not limited to, your use of the Uber Marketplace Platform or the driver version of the Uber App), regardless whether the dispute, claim, or controversy occurred or accrued before or after the date you agreed to the Terms, and regardless whether you allege that the personal injury was experienced by you or anyone else; and (iv) your relationship with Uber, will be settled by binding individual arbitration between you and Uber, and not in a court of law. This Arbitration Agreement survives after your relationship with Uber ends."

(Kosinski Decl., ¶ 15, Exh. D [emphasis in original].)

The court finds that by providing a copy of the arbitration agreement and including declarations evidencing Plaintiff's acceptance of the arbitration provisions, Uber Defendants met the initial burden in establishing the existence of an arbitration agreement. (Condee v. Longwood Mgmt. Corp., 2001) 88 Cal.App.4th 215, 218; Cal. Rules of Court, rule 3.1330.) The burden shifts to Plaintiff to challenge its validity. (Condee, supra, 88 Cal.App.4th at 219.)

In opposition, Plaintiff argues that Uber Defendants cannot establish that Plaintiff received actual or inquiry notice of the arbitration provisions as the records provided in support do not demonstrate what Plaintiff actually saw, whether she reviewed the Terms of Use, accessed any hyperlinks, or understood that she was purportedly waiving her right to pursue claims in court. (Opp., at pp. 9-10.) Plaintiff further argues that Uber fails to show that Plaintiff had inquiry notice of the terms by showing that the arbitration provisions were presented in a reasonably conspicuous manner and that Plaintiff unambiguously manifested assent to those terms. (Id., at pp. 10-11.) Plaintiff also argues that the terms are a contract of adhesion and violate the covenant of good faith and fair dealing. (Id., at pp.

11-14.)

"If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165; see *Condee*, supra, 88 Cal.App.4th at 219.)

"The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (*Ibid.*; *Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1065 [never given or signed contract]; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1054 [did not recall seeing or signing document]; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846 [did not recall signing agreement].)

Here, Plaintiff declares that she has no memory of seeing or reviewing the terms described. (*Butovskikh Decl.*, ¶¶ 3-10.) According to *Gamboa* this type of testimony, under oath, is enough to shift the burden back to the moving party to establish with "admissible evidence" that a valid arbitration agreement exists between the parties. (*Gamboa*, supra 72 Cal.App.5th at 166.) Thus, the burden shifts back to the Uber Defendants to prove the existence of a valid arbitration agreement.

As stated above, Uber Defendants supply admissible evidence of an arbitration agreement, and the records to show the Plaintiff agreed to the arbitration at the specified date and time along with Plaintiff's phone number and unique identifying number. (*Kosinski Decl.*, ¶¶ 9, 14-15, Exhs. A-D.) Uber Defendants also provide evidence stating that a "[i]n order to utilize Uber's platforms, a user must register for an account and agree to the Terms of Use". (*Id.*, ¶ 6.) The court also notes that in-app pop-up screen stating that Uber updated its Terms of Use constitutes adequate notice and opportunity to review putting Plaintiff on inquiry notice of the arbitration provision. (*Meyer v. Uber Technologies, Inc.* (2d Cir. 2017) 868 F.3d 66, 74-75.) Moreover, the mere fact an adhesion contract is involved does not per se render the arbitration

provision unenforceable because such contracts are “an inevitable fact of life for all citizens—businessman and consumer alike.” (Graham v. Scissor-Tail, Inc. (1981) 28 Cal.3d 807, 817.)

As such, Uber Defendants have met their burden establishing a valid, and agreed upon, arbitration agreement. There is also no dispute that Plaintiff's claims fall within the scope of the arbitration agreement.

B. Applicability of the Federal Arbitration Act

Uber Defendants next assert that the Federal Arbitration Act (“FAA”) governs the parties' arbitration agreement.

An arbitration clause is governed by the FAA if the agreement is a contract “evidencing a transaction involving commerce.” (9 U.S.C. § 2.) Courts “broadly construe” this phrase, because the FAA “embodies Congress' intent to provide for the enforcement of arbitration agreements within the full reach of the Commerce Clause.” (Giuliano v. Inland Empire Pers., Inc. (2007) 149 Cal.App.4th 1276, 1286.) A contract involves commerce under Section 2 of the FAA simply if the transaction, in fact, involves interstate commerce. (Id. at 1288.) “[P]arties may also voluntarily elect to have the FAA govern enforcement of the Agreement” (Victrola 89, LLC v. Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, 355.) The party asserting FAA preemption has the burden to present evidence establishing a contract affecting interstate commerce. (Carbajal v. CWPSC, Inc. (2016) 245 CA4th 227, 238.)

The arbitration agreement at issue here provides that “the Federal Arbitration Act, 9 U.S.C § 1 et seq. (“FAA”), will govern its interpretation and enforcement and proceedings pursuant thereto.” (Kosinski Decl., ¶¶ 9, 15, Exhs. B, D.) The court also notes that Plaintiff does not dispute that the FAA applies as expressly stated in Uber's Terms of Use. As such, the FAA governs this motion to compel arbitration. (Victrola 89, LLC v. Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, 346 [finding the FAA governs a motion to compel arbitration when an agreement provides its ‘enforcement’ shall be governed by the FAA].) Therefore, the court's inquiry is limited to a determination of (1) whether a valid arbitration

agreement exists and (2) whether the arbitration agreement covers the dispute. (9 U.S.C., § 4; Chiron Corp. v. Ortho Diagnostics Systems, Inc. (9th Cir. 2000) 207 F.3d 1126, 1130; *Howsam* v. Dean Witter Reynolds, Inc. (2002) 537 U.S. 79, 84; *Simula, Inc. v. Autoliv, Inc.* (9th Cir. 1999) 175 F.3d 716 [if the finding is affirmative on both counts the FAA requires the Court to enforce the arbitration agreement in accordance with its terms].)

C. Unconscionability

In opposition, Plaintiff argues that the arbitration terms are unconscionable. (Opp., at pp. 14-15.)

In reply, Uber Defendants argue that questions of unconscionability have been delegated to the arbitrator. (Reply, at pp. 2-3.) In support, Uber Defendants provide evidence of a delegation clause within the arbitration agreement, stating, in relevant part, as follows:

“(4)

Delegation Clause: Only an arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve any dispute arising out of or relating to the interpretation, applicability, enforceability, or formation of this Arbitration Agreement, including without limitation any claim that all or any part of this Arbitration Agreement is void or voidable. An arbitrator shall also have exclusive authority to resolve all threshold arbitrability issues, including issues relating to whether the Terms are applicable, unconscionable, or illusory and any defense to arbitration, including without limitation waiver, delay, laches, or estoppel.”

(Kosinski

Decl., ¶¶ 9, 14-15, Exhs. A-D.)

In light of the express language in the arbitration agreement, the court concludes that the parties have clearly and unmistakably delegated the issue of unconscionability to the arbitrator.

D. Possibility of Inconsistent Rulings

In opposition, Plaintiff also argues that arbitration should be denied as there is third parties whose claims arise from the same incident and which may lead to conflicting determinations of law or fact pursuant to Code of Civil Procedure section 1281.2(c). (Opp., at pp. 16-17.)

To the extent that Plaintiff urges the court to refuse to enforce the arbitration agreement under Section 1281.2(c), the court finds that option would likely be pre-empted by the FAA. As noted above, the parties have specifically agreed that enforcement of the agreement is governed by the FAA. Additionally, the arbitration provision provides that “[i]t is the intent of the parties to be bound by the provisions of the FAA for all purposes, including, but not limited to, interpretation, implementation, enforcement, and administration of this Arbitration Agreement, and that the FAA and the applicable arbitration provider’s rules shall preempt all state laws to the fullest extent permitted by law.” (Kosinski Decl., ¶¶ 9, 14-15, Exhs. A-D [emphasis added].)

Under the FAA, the possibility of conflicting rulings is not a ground for denying arbitration. (Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University, (1989) 489 U.S. 468, 476.) Thus, the court cannot deny arbitration on this ground.

E.
Stay Request

If a party applies to a court “for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code of Civ. Proc., § 1281.4.)

In sum, the court concludes that a valid arbitration agreement exists between Plaintiff and Uber Defendants; the claims involved in

this action are covered by such arbitration agreement; and that the FAA controls. The court also declines to deny enforcement of the arbitration agreement based on the likelihood of conflicting rulings. Accordingly, a stay is warranted.

IV.

CONCLUSION

Defendants Uber

Technologies, Inc., Uber USA, LLC, Rasier, LLC, and Rasier-CA, LLC's Motion to Compel Arbitration and Stay Proceedings is GRANTED.